

Deepika Saini vs State Of Rajasthan on 28 September, 2022

Author: Kuldeep Mathur

Bench: Kuldeep Mathur

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR

S.B. Civil Writ Petition No. 11035/2020

Deepika Saini W/o Late Niranjana Lal Saini, aged about 36 Years,
R/o Ward No. 45 Gyatri Nagar, Churu, Rajasthan.

---Petitioner

Versus

1. State Of Rajasthan, Through The Secretary, Department Of Education, Government Of Rajasthan, Jaipur, Rajasthan.
2. The Secretary, Department Of Rural Development And Panchayati Raj, Jaipur.
3. The District Education Officer, Primary Education, Churu.
4. The Chief Executive Officer, Zila Parishad, Churu.

---Respondents

For Petitioner(s) : Mr. Gulab Singh
For Respondent(s) : Mr. K.K. Bissa, AGC

HON'BLE MR. JUSTICE KULDEEP MATHUR

Order 28/09/2022 Briefly stated facts of the case are that the husband of the petitioner, Late Mr. Niranjana Lal Saini while working on the post of Teacher Grade-III in the respondent-department, passed away on 08.01.2020. The petitioner filed an application seeking compassionate appointment as per the provisions of Rajasthan Compassionate Appointment of Dependents of Deceased Government Servants Rules, 1996 (hereinafter referred to as the 'Rules of 1996'). The respondents vide order dated 22.08.2020, denied compassionate appointment to the petitioner on the (2 of 4) [CW-11035/2020] ground that some matrimonial disputes were on going between the parties at the time of the death of the deceased employee.

Learned counsel for the petitioner submitted that husband of the petitioner at the time of his death has left behind his wife i.e. present petitioner and a son namely, Rajat Saini, aged about 11 years. Counsel further submitted that owing to some disputes between the parties, an application seeking maintenance was filed under Section 125 Cr.P.C. by the petitioner before Family Court, Sikar. The Family Court, Sikar vide order dated 27.04.2016, directed husband of the petitioner to pay a sum of Rs.7,000/- per month to the petitioner as maintenance. It is further submitted that an application under Section 13 of the Hindu Marriage Act was preferred by the husband of the petitioner but the

same remained pending till the time of his death. It was submitted that after the death of the husband, it has become difficult for the petitioner to maintain herself and son. It was further submitted that the status of the petitioner is that of the legally wedded wife of the deceased employee, therefore, she is entitled to be appointed on compassionate grounds against suitable post as per the Rules of 1996.

Per contra, learned counsel for the respondents submitted that deceased employee and the petitioner had serious marital disputes and had been living separately. It was further submitted that a legal notice was served upon respondent-department by the relatives of the deceased employee requesting the department not to accord compassionate appointment to the petitioner who did not have cordial relations with the deceased-employee.

(3 of 4) [CW-11035/2020] Heard learned counsel for the parties and perused the material available on record.

The Government of Rajasthan, in exercise of the powers conferred by virtue of proviso to Article 309 of the Constitution of India promulgated Rules regulating the appointment on compassionate grounds to the dependents of deceased Government servants.

Rule 2(c) of the Rules of 1996 defines 'dependent', which is reproduced hereinbelow for the sake of ready reference:-

"(c) 'Dependent' means a spouse, son, unmarried or widowed daughter, 'adopted son/ adopted unmarried daughter' legally adopted by the deceased Government servant during his/her life time and who were wholly dependent on the deceased Government servant at the time of his/her death;"

Indisputably, the petitioner married the deceased Government servant on 04.12.2007. Rules of 1996 clearly stipulates that when a Government servant dies while in service, one of his/her dependents may be considered for appointment subject to condition that person appointed on compassionate grounds shall properly maintain other family members who are dependents of the deceased government servant. Rule 8 of the Rules of 1996 while prescribing upper age limit provides that there shall be no upper age limit for a widow applying for appointment on compassionate grounds. Admittedly, the petitioner and deceased government servant had strained marital relations and certain matrimonial disputes were also pending but that ipso facto does not take away from the petitioner the status of being 'spouse' of the deceased Government servant particularly when (4 of 4) [CW-11035/2020] decree of 'divorce' has not been granted in favour of the deceased government employee. It is also pertinent to note that the petitioner was in receipt of monthly maintenance from her husband pursuant to the order dated 27.04.2016 passed by Family Court, Sikar.

In view of the aforesaid discussion and considered opinion of this Court, the petitioner's application seeking compassionate appointment as per the Rules of 1996 deserves to be considered by the respondents, if she meets the criteria provided under the Rules of 1996. The application submitted by the petitioner cannot be rejected merely on the ground of pendency of matrimonial disputes

between the parties at the time of the death of deceased Government employee.

In the result, the writ petition is allowed. Accordingly, respondents are directed to consider the case of petitioner for compassionate appointment in accordance with the Rules of 1996 and grant her appointment, if she fulfills all other requirements. The entire exercise as indicated hereinabove shall be completed within a period of 3 months from today.

No order as to costs.

(KULDEEP MATHUR),J Ravi Khandelwal Powered by TCPDF (www.tcpdf.org)